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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

PLAINTIFF'S EVIDENTIARY OBJECTIONS
TO DECLARATIONS OF TYLER J.

O'CONNELL FILED APRIL 9, 2026 AND MAY
5, 2026

(Evid. Code, §§702, 800-805, 1200, 1271, 1521, 352; Cal.
Rules of Court, rule 3.1306(a))

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:30 a.m.; Dept. 301; Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

1 Authority

2 These objections are filed under California Rules of Court, rule 3.1306(a), and target evidence
3 that defendants have offered in support of their Special Motion to Strike Pursuant to C.C.P.
4 §425.16. The objections invoke California Evidence Code §§ 702 (personal knowledge), 800 to
5 805 (lay and expert opinion), 1200 (hearsay), 1271 (business-records exception), 1521 (best-
6 evidence rule), and 352 (probative-vs.-prejudicial discretion). Plaintiff's prior objections
7 of April 21, 2026 (Doc. No. 028) and April 24, 2026 (Doc. No. 058) are preserved and
8 incorporated by reference.

9 Format

10 Each objection identifies (a) the targeted statement or exhibit by document, paragraph, page,
11 and line number where available; (b) the rule(s) of evidence violated; (c) a one-line ruling-
12 friendly description of the basis. The Court is asked to rule on each objection consistent
13 with CRC 3.1306(a) and to enter a written ruling for each objection.

15 I. OBJECTIONS TO DECLARATION OF TYLER J. O'CONNELL IN SUPPORT
16 OF REPLY, FILED MAY 5, 2026 (DOC. NO. 081)

17 Objection 1 - O'Connell Declaration ¶ 6 (81.7-hour fee summary)

18 Targeted statement: Declaration of Tyler J. O'Connell in Support of Reply, filed May 5,
19 2026, ¶ 6 ("I have spent 81.7 hours of attorney time at \$210 per hour... plus an estimated 2
20 hours hearing time....").

21 Grounds and basis:

22 1. Lack of personal knowledge (Evid. Code §702)

23 a. Basis: The 81.7-hour figure is a summary aggregate; the declaration does not estab-
24 lish that Mr. O'Connell personally observed and recorded each timekeeping entry
25 contemporaneously.

26 2. Hearsay (Evid. Code §1200)

27 a. Basis: The 81.7-hour summary references underlying timekeeping entries that are

1 out-of-court statements offered for the truth of the matter asserted (the time spent).

2 3. Business-records foundation deficient (Evid. Code §1271)

- 3 a. Basis: The declaration does not identify the mode of preparation, the regular course
4 of business, the maker, or sources of information for the timekeeping records, and
5 does not establish trustworthiness of the source data.

6 4. Best-evidence violation (Evid. Code §1521)

- 7 a. Basis: The declaration's 81.7-hour figure refers to underlying timekeeping records
8 that are not produced in their original form; the redacted summary at Exhibit A
9 is not the original record.

10 5. Improper opinion (Evid. Code §§ 800 to 805)

- 11 a. Basis: To the extent the declaration opines that the time spent was "reasonable" or
12 "necessary," the declaration is opinion testimony without proper foundation under
13 Evid. Code §§ 800 to 805.

14 6. Prejudicial / cumulative (Evid. Code §352)

- 15 a. Basis: The fee prayer is set forth at p. 5 ll. 8 to 10 of the Reply; ¶ 6 of the
16 declaration is cumulative; the redacted summary at Ex. A is more prejudicial than
17 probative.

18 Ruling requested: SUSTAIN as to ¶ 6 in its entirety on grounds 1.1 through 1.5; SUSTAIN
19 as to opinion language on ground 1.5; ALTERNATIVELY exclude under §352 on ground
20 1.6.

21
22 _____
23 Objection 2 - O'Connell Declaration Exhibit A (redacted billing summary)

24 Targeted exhibit: Declaration of Tyler J. O'Connell in Support of Reply, filed May 5, 2026,
25 Exhibit A (redacted billing summary).

26 Grounds and basis:

27 1. Best-evidence violation (Evid. Code §1521)

- 28 a. Basis: The redacted summary is not the original timekeeping record; redactions
impair the best-evidence inquiry.

2. Business-records foundation deficient (Evid. Code §1271)

a. Basis: No foundation under §1271 mode-of-preparation, regular course of business, sources of information, trustworthiness.

3. Hearsay (Evid. Code §1200)

a. Basis: Redacted summary is an out-of-court statement offered for the truth of time-spent figures.

4. Prejudicial / cumulative (Evid. Code §352)

a. Basis: The redactions and aggregate format render the document more prejudicial than probative for purposes of evaluating fee reasonableness.

Ruling requested: SUSTAIN as to Exhibit A in its entirety on grounds 2.1 through 2.3; ALTERNATIVELY exclude under §352 on ground 2.4.

Objection 3 - O'Connell Declaration paragraphs characterizing plaintiff's intent or motive
Targeted statements: any paragraph of the May 5, 2026 declaration that purports to describe Plaintiff's "intent," "purpose," "motive," or "state of mind" (e.g., "persists in," "gamesmanship," "intends to overburden") on which the Reply at p. 1 l. 24 to p. 2 l. 1 may rely.

Grounds and basis:

1. Lack of personal knowledge (Evid. Code §702)

a. Basis: Mr. O'Connell has no personal knowledge of Plaintiff's intent, purpose, motive, or state of mind.

2. Improper opinion (Evid. Code §§ 800 to 805)

a. Basis: Lay opinion as to another person's mental state requires foundation; expert opinion requires §801 qualifications and basis.

3. Hearsay (Evid. Code §1200)

a. Basis: To the extent the declaration relies on out-of-court statements as basis for the characterization.

Ruling requested: SUSTAIN.

1 II. OBJECTIONS TO DECLARATION OF TYLER J. O'CONNELL IN SUPPORT
2 OF SPECIAL MOTION TO STRIKE, FILED APRIL 9, 2026 (DOC. NO. 017)

3 Objection 4 - Statements about appeal status, prior trial team, or roles of Carbone / Cham-
4 bers

5 Targeted statements: any paragraph of the April 9, 2026 declaration that purports to de-
6 scribe the appeal status of Rosario v. Abdelhalim (A173827), the composition of the prior
7 trial team, or the roles of attorneys Carbone or Chambers in 2022.

8 Grounds and basis:

9 1. Lack of personal knowledge (Evid. Code §702)

10 a. Basis: Mr. O'Connell did not represent any party in 2022; he became counsel of
11 record after the events.

12 2. Hearsay (Evid. Code §1200)

13 a. Basis: Statements about events in 2022 are out-of-court statements offered for the
14 truth.

15 3. Improper opinion (Evid. Code §§ 800 to 805)

16 a. Basis: To the extent the declaration characterizes the legal effect of appellate status.

17 Ruling requested: SUSTAIN as to all such paragraphs.
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19 Objection 5 - Characterizations of plaintiff's communications or filings

20 Targeted statements: any paragraph of the April 9, 2026 declaration that characterizes
21 Plaintiff's communications, pleadings, or filings.

22 Grounds and basis:

23 1. Improper opinion (Evid. Code §§ 800 to 805)

24 a. Basis: Characterization is opinion that requires foundation.

25 2. Best-evidence violation (Evid. Code §1521)

26 a. Basis: Plaintiff's filings speak for themselves; characterizations are not the best
27 evidence of their content.

1 3. Prejudicial (Evid. Code §352)

2 a. Basis: Characterizations are more prejudicial than probative.

3 Ruling requested: SUSTAIN.

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III. CROSS-REFERENCES AND PRESERVATION

6 Plaintiff's Combined Objection to RFJN and Evidentiary Objections, filed April 21, 2026
7 (Doc. No. 028), and Plaintiff's Evidentiary Objections to the Declaration of Tyler J.
8 O'Connell, filed April 24, 2026 (Doc. No. 058), are incorporated by reference. Plaintiff
9 preserves all prior-filed objections and renews them by reference. These Evidentiary Objec-
10 tions are also incorporated, under CRC 3.1113(j), into Plaintiff's Motion to Strike the May
11 5, 2026 Reply Declaration of Tyler J. O'Connell and Exhibit A; or, in the Alternative, for
12 Leave to File a Sur-Reply (filed May 7, 2026), which seeks the per-objection written ruling
13 required by CRC 3.1306(a) and Reid v. Google, Inc. (2010) 50 Cal.4th 512, 532.

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Cross-references: Plaintiff's Consolidated Operative Opposition (filed May 7, 2026) §I (de
16 novo review of evidentiary rulings) and §VII (fee-prayer rebuttal preview); Plaintiff's Dec-
17 laration in Opposition (filed May 7, 2026) Part B ¶¶ 30 to 32.

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The foregoing is submitted by Plaintiff in pro per.

Dated: May 7, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Franciscus Dylan Rosario, appearing in pro per in Rosario v. Abdelhalim et al. (CGC-25-631801), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 12, 2026, 9:30 a.m. anti-SLAPP hearing in Department 301.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CRC 3.1306(a)	Written ruling per objection	Format section requests written ruling per objection; each objection presented in itemized ruling-friendly format	Format paragraph; Sections I, II	PASS
2	Evid. Code section 702	Personal knowledge	Objections 1, 4, 5, 7 invoke section 702	Objections 1.1, 4.x, 5.x, 7.x	PASS
3	Evid. Code section 1200	Hearsay	Objections 1.2, 4.x invoke section 1200	Objections 1.2, 4.x	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
4	Evid. Code section 1271	Business-records foundation	Objections 1.3, 2.x invoke section 1271	Objections 1.3, 2.x	PASS
5	Evid. Code section 1521	Best-evidence rule	Objections 1.4, 2.x invoke section 1521	Objections 1.4, 2.x	PASS
6	Evid. Code sections 800 to 805	Lay and expert opinion	Objections 1.5, 5.x invoke sections 800 to 805	Objections 1.5, 5.x	PASS
7	Evid. Code section 352	Probative-vs-prejudicial discretion	Objections 1.6, 6.x invoke section 352	Objections 1.6, 6.x	PASS
8	CCP section 425.16	Anti-SLAPP context	Objections target evidence offered in support of section 425.16 motion	Authority paragraph	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
9	CRC 3.1113(j)	Incorporation; cross-references	Operative Opposition section I(c) and Motion to Strike Reply Declaration cross-incorporate these objections	Operative Opposi- tion section I(c); Motion section V	PASS
10	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently, paragraph 4	PASS
11	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
12	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS
13	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Graphic filing signature preceding roman appendix	PASS
14	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS

15	CRC 3.1112	Other papers; required components	Caption, body, signature page, and companion Proof of Service filed concurrently	Objections body; graphic signer before appendix; Proof of Service	PASS
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